

1. Line 39 through 58:

39 (b) Except as provided in Subsection (3), a person who sells, donates, offers, or serves a
 40 consumable item during the school day shall comply with the requirements under this
 41 section.

42 (3) ~~Notwithstanding Subsection (2)(b):~~

43 ~~[(i) ~~Notwithstanding Subsection (2)(b):~~ a student's parent may provide students with a food item~~
 43a described in Subsection

44 (2)(a) during the school day;

45 ~~[(ii) ~~Notwithstanding Subsection (2)(b):~~ a teacher may provide students with a food item described~~
 45a in Subsection (2)(a)

46 if the teacher obtains permission from the students' parents at the start of each
 46a school

47 semester; ~~and~~

48 ~~[(iii) ~~Notwithstanding Subsection (2)(b):~~ an individual may donate a food item described in~~
 48a Subsection (2)(a) to a
 49 school's food pantry;

50 ~~[(iv) ~~Notwithstanding Subsection (2)(b):~~ a public school may accept and distribute to a student a food~~
 50a item:

51 ~~[(i) ~~Notwithstanding Subsection (2)(b):~~ described in Subsection (2)(a); and~~

52 ~~[(ii) ~~Notwithstanding Subsection (2)(b):~~ donated under Subsection (3)(c); and~~

53 ~~[(iii) ~~Notwithstanding Subsection (2)(b):~~ a person may sell a food item described in Subsection (2)(a):~~

54 ~~[(A) ~~Notwithstanding Subsection (2)(b):~~ as a concession item at a school-sponsored event or~~
 54a extra-curricular activity;

55 or

56 ~~[(B) ~~Notwithstanding Subsection (2)(b):~~ in a vending machine.~~

57 ~~[(C) ~~Notwithstanding Subsection (2)(b):~~ This section does not apply to a charter school or school district that has~~
 57a 5,500

58 students or fewer until the 2027-2028 school year.